

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

IMPACT PRODUCTS, LLC AND SAFETY ZONE, LLC,
Complainants

v.

ORIENT OVERSEAS CONTAINER LINE LIMITED AND OOCL
(EUROPE) LIMITED, *Respondents*.

DOCKET NO. 24-08

Served: June 3, 2024

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge*.

ORDER DENYING MOTION TO DISMISS

On March 8, 2024, Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited (collectively, “Respondents” or “OOCL”) filed a Motion to Dismiss and Memorandum in Support of Motion to Dismiss (“Motion”), asserting that Complainants Impact Products, LLC (“IP”) and Safety Zone, LLC (“SZ”) (“collectively, “Complainants”) lack standing to pursue reparations pursuant to the “direct purchaser” rule. On March 25, 2024, IP and SZ filed a response in opposition to the Motion (“Opposition”). On March 28, 2024, OOCL filed a reply to Complainants’ response in opposition (“Reply”). Complainants acknowledge that Laufer Group International (“Laufer”) invoiced the disputed charges to them, but contend that Complainants were responsible for paying the charges, which confers standing on Complainants. Opposition at 6-7 (citations omitted). Complainants assert that in the alternative they would obtain an assignment of the claims from Laufer. Opposition at 9.

On May 3, 2024, the undersigned issued a Scheduling Order deferring the Motion and ordering the Complainants to file an amended complaint by May 20, 2024, alleging the assignment of the claim and clarifying portions of the complaint. The Scheduling Order also set dates for the parties to submit a joint status report (“JSR”), and for Respondents to file an answer to the complaint.

Complainants complied with the order to file an amended complaint alleging the assignment of the claim by Laufer, and the parties filed the joint status report on May 31, 2024, noting that Respondent will file its answer on June 7, 2024, and requesting a decision on the deferred Motion.

The amended complaint alleges and has attached to it an “Assignment of Claims Agreement” that references the case *sub judice* and other complaints pending before the Commission. Amended Complaint, Exhibit A. The Assignment of Claims Agreement in pertinent part states that Laufer, as Assignor, “assigns to Assignees...any and all of Assignor’s

rights, title, interest, claims, cause or causes of action of any kind whatsoever which Assignor has, or may have, arising from the Administrative Proceedings....” Amended Complaint ¶ 17, Exhibit A, pg. 2.

The assignment of claims alleged in and attached to the amended complaint cures the defect alleged by Respondents in the Motion, and the motion is hereby **DENIED AS MOOT**.

The parties are **ORDERED** to submit a joint status report by June 17, 2024, with proposed discovery schedule that completes discovery within 150 days of service of the answer.



Linda S. Harris Crovella
Administrative Law Judge